

		breach of duty, causation and damages apply.” (<i>Slaughter vs. Legal Process & Courier Serv.</i> (1984) 162 Cal.App.3d 1236, 1249.) “The California Supreme Court has allowed plaintiffs to recover damages as ‘direct victims’ in only three types of factual situations: (1) the negligent mishandling of corpses (<i>Christensen v. Superior Court</i> (1991) 54 Cal.3d 868, 879 [2 Cal.Rptr.2d 79, 820 P.2d 181]); (2) the negligent misdiagnosis of a disease that could potentially harm another (<i>Molien, supra</i>, 27 Cal.3d at p. 923); and (3) the negligent breach of a duty arising out of a preexisting relationship (<i>Burgess v. Superior Court</i> (1992) 2 Cal.4th 1064, 1076 [9 Cal.Rptr.2d 615, 831 P.2d 1197]).” (Judicial Council Of California Civil Jury Instruction 1620.) Greget did not allege sufficient facts to state this cause of action. More specifically, there is a failure to allege with sufficiency facts to show that a duty arose out of an existing relationship. Demurrer is sustained with 15 days leave to amend. <u>Prayer</u> Plaintiffs also take issue with Greget’s prayer for declaratory relief and injunction; however, that is not a proper matter for demurrer. The Court declines to consider whether Greget’s prayer for declaratory relief and injunction is proper. Plaintiffs shall give notice. Case Management Conference Continued to August 3, 2026 at 9:00 a.m.
3	First Foundation Inc. vs. Keller 2025-01493220	Motion to Compel Production There is no tentative
4	Galindo vs. Sosoatu 2025-01536978	Motion to Strike Portions Of Complaint Continued to 08/03/2026
5	McPherson vs. Donald & Lynn Southard, LLC	Motion to Quash Service of Summons Continued to 07/06/2026